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1 IN THE UNITED STATES DISTRICT COURT
 EASTERN DISTRICT OF MISSOURI
2 EASTERN DIVISION

[↑ Summary](#)

3 MARK GULLETT,)
)
4 Plaintiff,)
)
5 vs.)Cause No. 4:18-cv-01571-JCH
)
6 CITY OF SAINT LOUIS, ET AL.,)
)
7 Defendants.)

8

9

10

11 VIDEOTAPED DEPOSITION OF OFFICER SCOTT

12 VALENTINE, produced, sworn, and examined on behalf of

13 the Plaintiff, January 9, 2020, between the hours of

14 eight o'clock in the forenoon and five o'clock in the

15 afternoon on that day, at the City Counselor's Office,

16 City Hall, Room 314, 1200 Market Street, St. Louis,

17 Missouri 63103, before Rebecca L. Tuggle, a Registered

18 Professional Reporter, Certified Court Reporter, and

19 Certified Shorthand Reporter within and for the State

20 of Missouri.

21

22

23

24

25

[↑ Summary](#)

4

1 A P P E A R A N C E S

2

FOR THE PLAINTIFF:

3

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[↑ Summary](#)

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15

16 VIDEOGRAPHER:

17 DAVID DOELL
Alaris Litigation Services

18

19 REPORTED BY:

[↑ Summary](#)

20 REBECCA L. TUGGLE, RPR, CCR, CSR
Alaris Litigation Services

21

22

23

24

25

1 VIDEOGRAPHER: We are now on the record.

2 Today's date is January the 9th, 2020. The time is

3 approximately 10:06 a.m. This is the video-recorded

4 deposition of Scott Valentine, in the matter of

5 Gullett versus the City of St. Louis, et al., Case

[↑ Summary](#)

6 Number 4:18-cv-01571-JCH, in the United States

7 District Court for the Eastern District of Missouri.

8 This deposition is being held at the City of St. Louis

9 City Hall. The reporter's name is Rebecca Tuggle. My

10 name is David Doell and I am the legal videographer.

[↑ Summary](#)

11 We are here with Alaris Litigation Services.

12 The attorneys present please introduce

13 yourselves.

14 MS. HANLON: Maureen Hanlon for Mr. Gullett.

15 MS. DRAKE: Kiara Drake for Mr. Gullett.

16 MS. RAIMONDO: Amy Raimondo for the

17 defendants.

18 VIDEOGRAPHER: Court reporter please swear

19 in the witness and we may proceed.

20 IT IS STIPULATED AND AGREED by and between

21 counsel for the Plaintiff and counsel for the
22 Defendants that the videotaped deposition of OFFICER
23 SCOTT VALENTINE may be taken in shorthand by Rebecca L.
24 Tuggle, a Registered Professional Reporter, Certified
25 Court Reporter, and Certified Shorthand Reporter, and

[↑ Summary](#)

6

1 afterwards transcribed into typewriting, and the
2 signature of the witness is waived by agreement of
3 counsel and the witness.
4 * * * * *
5 OFFICER SCOTT VALENTINE,
6 of lawful age, being produced, sworn, and examined on
7 the part of the Plaintiff, and after responding "Yes"
8 to the oath administered by the court reporter, deposes
9 and says:

10 * * * * *

11 EXAMINATION

12 QUESTIONS BY MS. HANLON:

[↑ Summary](#)

13 Q All right. Good morning, Sergeant
14 Valentine.

15 A Good morning.

16 Q So just before we went on the record, we

17 came to the understanding that this is your first

18 deposition.

19 A Yes.

[↑ Summary](#)

20 Q But you are familiar with giving testimony

21 as you have, you said, testified in court multiple

22 times?

23 A Yes.

24 Q Okay. So I'm going to go over a couple

25 ground rules just because this is your first time. So

7

1 we have a court reporter here taking down all of the

2 words both you and I and Ms. Raimondo says; so that

3 means that we have to be careful not to talk over each

4 other.

5 A Sure.

[↑ Summary](#)

6 Q And we have to be careful that everything we

7 say is on the record. So I'm -- I'm a chronic head

8 nodder; so I have to be careful to say "yes" out loud.

9 Will you agree to do the same?

10 A Yes.

11 Q And if I ask a question, will you promise to

12 stop me or say that you don't understand or somehow --

13 you know, if there's anything that's confusing,

14 indicate to me that you find it confusing.

15 A I will.

16 Q Okay. If you answer a question, I'm going

17 to assume that you understood the question.

18 A Okay.

19 Q We're here today to -- during the course of

20 today, we're going to look at a -- a lot of photos and

21 videos and I'm going to ask you about the

22 identifications of various people, if you know them.

23 A Okay.

24 Q If you do know them, at any point if you see

25 anyone you recognize, please just let me know, and

[↑ Summary](#)

8

[↑ Summary](#)

1 that's -- that's pretty much all we're going to be

2 talking about today is just figuring out different

3 people's identities.

4 A Okay.

5 Q If you need a break at any point, let us

6 know.

7 A Okay.

8 Q Is there any reason that you can think of

9 that you would not be able to give truthful testimony

10 here today?

11 A No.

12 Q Okay. Well, thank you for joining us. So

13 we are here to talk about a mass arrest that took

[↑ Summary](#)

14 place on September 17, 2017.

15 A Okay.

16 Q Were you present and on duty that night?

17 A Yes.

18 Q And at the time, were you employed by SLMPD?

19 A I was.

20 Q And how long have you been employed by

21 SLMPD?

22 A As of today, 22 years. At that time, it

23 would have been, I guess, 21 and a half, somewhere in

24 that range.

25 Q Yeah. Okay.

9

[↑ Summary](#)

1 A Twenty years.

2 Q So -- and you were -- when you say you were
3 present on duty, you were present on duty at the
4 corner of Washington and Tucker during -- during the
5 mass arrest?

6 A Yes.

7 Q Okay. What was your assigned role there
8 that evening?

9 A Supervisor of an arrest team.

10 Q Okay. Do you remember which arrest team?

11 A I do not.

[↑ Summary](#)

12 Q Okay. So what -- what other teams were
13 there besides arrest teams?

14 A I can't say specifically what other teams
15 were there. I know that I was assigned to an arrest
16 team. There was another arrest team paired up with
17 the team that I was with. I really don't know what
18 you would call the people that we handed them off to

19 or anything like that. But my duties that night were

20 to supervise the officers assigned to me that would

21 make arrests and hand them off to the -- the hand-off

22 teams of whatever their official name is for the

23 record.

24 Q And was this arrest team part of the civil

25 disobedience team?

[↑ Summary](#)

10

1 A Yes.

2 Q Okay. Had you ever worked with the civil

3 disobedience team before or was this set of protests

4 your first time?

5 A I've worked -- I've -- I've been assigned to

6 civil disobedience before.

7 Q Okay. Do you know why you were chosen to be

8 an arrest team leader?

9 A I do not know why I was chosen to be the

10 supervisor of an arrest team.

11 Q Okay. How many people were on your team?

12 A I believe there was six people assigned to

13 me.

[↑ Summary](#)

14 Q Is that how many were on each arrest team

15 or --

16 A I believe so.

17 Q -- just six happened to be --

18 A I believe each arrest team had six people.

19 Q Okay. What -- did all six people have

[↑ Summary](#)

20 different roles on the team or did they have -- they

21 were all -- they were all just simply members of the

22 arrest team?

23 A I would say that there was a slight

24 variation in each role for the personnel assigned to

25 it, being that to effect the arrest as -- as the line

11

1 separates for the arrest team to advance, you would

2 have the first two to provide cover for the officers

3 that are advancing to engage people. So those

4 officers will be the eyes to prevent them from being

5 harmed, and the middle two would make contact, and the

6 next two would cover them from behind to prevent them

[↑ Summary](#)

7 from being assaulted from behind as they step out to

8 make contact with whoever is going to be arrested.

9 Q Can you -- so when you described that, you

10 said as the line moves for the arrest team to go

11 through?

12 A Right.

13 Q Can you describe that more for me?

14 A So you had -- you have the -- the -- the

15 team members. You have a straight line that advances

16 towards the arrests, and we are -- as arrest team,

17 we're behind that line. That line provides cover for

18 the arrest team until it's time for the arrest team to

19 make contact.

20 At that point, the line that was now -- that

21 had been providing us cover separates for the arrest

[↑ Summary](#)

22 team to advance through. And at that point, the --

23 the arrest team is now exposed to the elements on the

[↑ Summary](#)

24 other side of that line; so the officers will provide

25 cover for each other as they make contact with the --

1 I guess, the arrestee. So then you have the two
2 officers, the team, step through the line, myself
3 included as a supervisor. I'm standing outside of my
4 personnel. So we step through the line.

5 Like I said, the first two will provide
6 cover to prevent them from being assaulted from the
7 front, the other two will make contact, and then the
8 rear two will provide rear cover to prevent them from
9 being assaulted from the rear as well as to guide them
10 back into their original position or back through the
11 line so they can transfer the arrested person to
12 whoever is going to convey them to the Justice Center
13 or wherever they're going after that.

14 Q Where would you be? So you said you stayed
15 with your group.

16 A So if you have my line, two guys, they're
17 side by side, I would be on -- let's say they're all
18 facing north. I would be to the east or to their
19 right --

20 Q Okay.

21 A -- as they advance, if -- if the terrain
22 will allow me to be there. Otherwise, I'll be on the

[↑ Summary](#)

23 other side. I wouldn't be in -- mixed in with them.

24 I would be either to the left or the right depending

25 on what the environment allows me to -- to do.

[↑ Summary](#)

13

1 Q What -- is it important that you not be

2 mixed in with them?

[↑ Summary](#)

3 A I would -- I would assume yes so that

4 they -- they would know who to look to if they had a

5 question or if they needed guidance for me not to look

6 like one of them --

7 Q Right.

8 A -- to confuse them as to who they're talking

9 to. So I would say tactically, yes, it's -- it would

10 be necessary for me to not be mixed in with them.

11 Q So you and your officers were trained that

12 you would be kind of standing to their -- to their

13 side --

14 A I would --

15 Q -- so that they could ask you questions?

16 A I would not be mixed in with them.

[↑ Summary](#)

17 Q Yeah.

18 A For -- as well as to give me visuals as to

19 what they are doing and provide a visual for the

20 arrested person to know that there's a supervisor

21 there as well, but I would not be mixed in with the

22 guys that I'm supervising.

23 Q So on that night, how did you and your team

24 know when it was time to go through the line?

25 A An order would have been given to advance to

14

1 make contact with whoever's going to be arrested.

2 Q Who would give that order?

3 A A commander of some sort. I'm not -- I'm

4 not certain. There were numerous commanders out

5 there, but it -- it wouldn't be a sergeant unless

6 they're in charge of the entire operation. So whoever

7 the incident commander is for that would be the person

8 to give that -- that order.

9 Q And would this person give you and your team

10 specifically an order or -- or -- how would that like

[↑ Summary](#)

[↑ Summary](#)

11 practically work? So you're standing behind the line.

12 Who -- like how does someone tell you to kind of move

13 through the line?

14 A I don't remember the wording exactly or even

15 if there are hand gestures, but you are instructed to

16 effect the arrest.

17 Q Like -- like would someone come over to you

18 individually or --

19 A No. No. I think --

20 Q -- was it from a radio or --

21 A -- I think I -- for the whole time --

22 Q Yeah.

[↑ Summary](#)

23 A -- the -- the incident commands, we're

24 talking on megaphones and loudspeakers; so they

25 wouldn't -- they wouldn't intersperse themselves in

15

1 the crowd with us either. So it was coming from

2 wherever the incident commander would have been

3 stationed.

4 Q Got it. So you heard it, but through like a

5 mega -- through a megaphone?

6 A Through a -- a loudspeaker or something of

7 that nature.

8 Q Okay. So you would hear someone say time

9 for the --

[↑ Summary](#)

10 A Yes.

11 Q I know you don't remember the exact words,

12 but something -- something to the effect of --

13 A Some instruction, yes.

14 Q Some instruction. Okay. Were those six

15 folks in your team, were they carrying -- did they

16 have different gear or were they carrying different

[↑ Summary](#)

17 things?

18 A No. They would all be dressed the same.

19 They would have had the zip ties, and that would have

20 been really the only thing that they would have been

21 issued extra besides the helmet and -- and things like

22 that. The zip ties, the plastic cuffs, would have

23 been issued to them unless they had their own, but

24 usually they're issued as needed.

25 Q Were they -- were members of your arrest

[↑ Summary](#)

1 team carrying shields or batons?

2 A I believe one would have had a shield, one

3 would have had a baton.

4 Q For all six?

5 A I'm not sure if the whole team has them, but

6 I know there's at least one stick and one shield

7 within the arrest team.

8 Q Got it. Okay. So how did these six

9 officers know that they were on your arrest team?

10 A I guess by -- by -- by where they -- they

11 were stationed, what station they were coming from,

12 meaning area station. The area stations typically

13 stay together. And while I'm -- I'm not assigned to

14 an area, they were -- they just so happened to be

15 assigned to me.

16 Q Okay. Were -- were they told like in an

17 e-mail? Were they told in person? Did you tell them?

[↑ Summary](#)

18 A There's a list. There's a list that would

19 have shown who you were assigned to.

20 Q Okay. So they would have been given this

21 list and -- and known from the list?

[↑ Summary](#)

22 A Someone would have informed them by way of

23 that list that -- or their district commander or

24 somebody would have informed them further they're on

25 the team, and then that list would have further

17

1 informed them of who they're assigned to.

2 Q And did you work with these six officers

3 throughout that whole weekend of protests?

4 A No.

5 Q Okay. What changed about it?

6 A Some officers didn't show up at times.

7 Different personnel changes throughout the department

8 as a whole would have deemed where this -- we -- we --

[↑ Summary](#)

9 to fill the void with somebody else if a person

10 couldn't make it for whatever reason that they didn't

11 make it. So the personnel would have changed for --

12 to accommodate why a certain team member wouldn't be

13 here.

14 Q Okay. One more question about your team.

15 So I know you said that the arrest teams are not

16 differently dressed than other members of the CDT

17 team.

18 A Correct.

19 Q Did you have any other types of markings?

20 A There -- there was colored tape on the

21 helmets. I don't remember -- sergeants had one color.

22 Officers had another color. Teams had their color to

23 represent what team they were assigned to. But I

24 couldn't tell you exactly what the color schemes were

25 to identify them.

[↑ Summary](#)

18

1 Q Do you -- oh, sorry. Sorry. I cut you off.

2 A I couldn't tell you what the color schemes

3 would have been or what they were to identify each

4 team, but I know there was a color scheme for

5 identification of certain teams or whatever.

6 Q Who -- who would know what the color scheme

7 was?

8 A I can't -- I can't -- with a degree of

[↑ Summary](#)

9 certainty, I can't say, but it might be included on

10 the -- the list of personnel, but I'm -- I'm not

11 certain --

12 Q What was your --

13 A -- as to --

14 Q -- color?

15 A I don't remember.

[↑ Summary](#)

16 Q You don't remember the color tape you had?

17 A I do not.

18 Q Do you remember the color tape your team

19 had?

20 A I do not.

21 Q Do you -- okay. Do you know if it was just

22 tape kind of horizontally across the back of the

23 helmet or was it like a vertical strike kind of?

24 A I can't say for certain, but I think that

25 supervisors might have had either the vertical or

1 horizontal and officers might have had an X.

2 Q Oh.

[↑ Summary](#)

3 A But I'm not -- I'm not certain.

4 Q Like officers on the arrest team had an X?

5 A No. Just officers in general --

6 Q Okay.

7 A -- might have had an X. And their color

8 would have been different. The -- the -- the team

9 color would have been one color and then the

10 supervisor would have had a different color to

11 identify the supervisor --

12 Q Yeah.

13 A -- for that particular team.

14 Q Okay. So you mentioned there were two --

15 well, okay. So let's -- if you want to open this

16 binder of exhibits.

17 A Sure.

18 Q If you want to turn to page 8. So there's

19 little red numbers at the bottom.

20 A Okay. Okay.

21 Q This is from a roll call sheet produced by

22 the City for the night of September 17th --

23 A Okay.

24 Q -- 2017. At the top of this page -- this is

[↑ Summary](#)

[↑ Summary](#)

25 Plaintiff's Exhibit 2, page 8. At the top of the

20

1 page, it says "South Patrol Team 2," and at the bottom

2 of the page where it -- it describes the arrest team,

3 I believe your name is right under there, Sergeant

4 Scott Valentine?

5 A Yes.

6 Q Is that -- were you, in fact, the -- on the

7 South Patrol, team two?

8 A I would have been assigned to South Patrol

9 team, yes.

10 Q Okay. One quick question. So if you flip

11 back a couple pages to page 5.

[↑ Summary](#)

12 A Yes.

13 Q It says "South Patrol Team 1" and Sergeant

14 Samuel Gilman is the arrest team sergeant. So what

15 was the -- why were there two South Patrol teams?

16 A District One and District Two.

17 Q Tell me more about that.

18 A South Patrol is comprised of District One

[↑ Summary](#)

19 and District Two, Central Patrol is District Three and

20 four, and North Patrol is, I believe, five and six.

21 Q Yeah.

22 A The -- the actual districts that you patrol

23 is identified in the -- in -- in this list. So team

24 one would have come from District One and team two

25 would have been District Two of the South Patrol team.

21

1 Q So -- and when you're talking about these

2 districts and -- and the patrols, you're talking about

3 outside of this event. This is the way just generally

4 officers are organized in SLMPD?

5 A This is how they comprised the list. As

6 they drew the team members, this member comes from

7 this district, that member comes from that district,

8 and I'm -- they're keeping them organized with their

9 parent district.

10 Q Okay. And I believe we talked about this

11 before when we weren't on the record; but, Sergeant,

12 you, in fact, are not assigned to those general

[↑ Summary](#)

13 patrols -- correct? -- south, central, north?

14 A At that time, I was not.

15 Q And so your -- your general duty outside of

16 CDT, can you just state for the record what that is?

17 A Supervisor of the St. Louis City Marshals.

18 Q Okay. So -- and I notice on here it says

19 your -- the AC, which is your -- do I have that right

20 that that stands for assignment code?

[↑ Summary](#)

21 A Correct.

22 Q Yeah. And so yours looks really different

23 than almost anyone else on this list.

[↑ Summary](#)

24 A Correct.

25 Q Why is that?

22

1 A That is the assign -- that was the

2 assignment code of the marshals unit.

3 Q Okay. So is anyone else on South Patrol,

4 team two, assigned to the marshals or that -- only

5 you?

6 A No, just me.

7 Q Okay. Have you -- so you didn't -- these

8 other officers you're working with, you didn't

9 generally work with them outside of the CDT team?

[↑ Summary](#)

10 A At this time, no. I -- I was assigned to

11 District Two prior to going to the marshals unit.

12 Q Oh, got it.

13 A But at that time, I wasn't on the civil

14 disobedience team when I was assigned to District Two.

15 Q So some of these you might have known

16 just -- some of these officers on your arrest team you

17 might have known from your prior work in District Two?

18 A Yes.

19 Q Are there any specifically you knew from

20 before this -- this weekend?

21 A I would know Ramelle Wallace. William --

22 well, there are two William Triplets. I would have

23 to see the face to know which William Triplett this

24 would be.

[↑ Summary](#)

25 Q They're spelled the exact same with two

1 William Triplets?

2 A Yes. Yes.

3 Q That's confusing.

4 A Philip Von Der Heydt was -- I -- I would

5 know him, and I would know Oliver Poggioli. And when

6 I say I would know him, I would know what he looks

7 like, not from a standpoint that we hang out together

8 or anything like that, but I would know who he is just

9 by sight.

10 Q So -- and do you think it's fair to say that

11 most of these officers, at this point, you would know

12 by sight, these six officers underneath -- underneath

13 you?

14 A Sure.

15 Q Okay. And is this roll call sheet --

16 so listing these six officers -- are those the six

17 officers that were on your arrest team the night of

18 September 17, 2017?

19 A I would assume that the roll call sheet has

20 identified them. I can't say for certain because,

21 like I said, team members were rotated in, but I guess

22 this is the most accurate or close to what -- what

23 should have been there on that night.

[↑ Summary](#)

[↑ Summary](#)

24 Q Do you have any reason to believe, like any
25 memory, that any of these six individuals were not

24

1 there that night?

2 A I can't say with any degree of certainty of
3 who was there that night. I -- I can only refer to
4 this sheet as to who should have been there.

5 Q Okay.

6 A But I can't -- can't say with any degree of
7 certainty, because, again, at some point, they were
8 rotating in over the -- the time that we were there;
9 and not looking into the future and seeing that I
10 would see myself in a deposition a few years later, I
11 didn't keep track of who was there. Just as long as I
12 had my six people was all that mattered.

[↑ Summary](#)

[↑ Summary](#)

13 Q Okay.

14 A So I really wasn't trying to see
15 specifically or recall who -- who specifically was
16 there.

17 Q Okay. So I'm going to hand you -- we have a

18 marker over there. I'm going to hand you what's been

19 marked as Plaintiff's Exhibit 78.

20 (Exhibit 78, Google Map, was marked for

21 identification.)

22 Q (By Ms. Hanlon) So this is a

23 super-scientific Google street maps view --

24 A Okay.

25 Q -- of the corner of Washington and Tucker.

[↑ Summary](#)

25

1 So the -- the top of the page is north.

2 A Okay.

3 Q So Tucker runs north-south and then

4 Washington --

5 A Okay.

6 Q -- runs --

7 A East-west.

8 Q -- east-west.

9 A Sure.

10 Q Thank you. So can you draw a "1" where you

11 believe your arrest team was when it first arrived --

[↑ Summary](#)

12 so, I guess, to -- to back up briefly, I believe -- my

13 understanding is that all of the teams kind of walked

14 towards this intersection. Is that a correct

15 understanding?

16 A Yes.

17 Q Okay. So after you walked and had kind of

18 arrived generally at the intersection, can you draw a

19 "1" with a purple marker for where your team was when

20 you first got there.

21 A We would have come from the south.

[↑ Summary](#)

22 Q Okay. Can you hold that up for our -- our

23 cameraman?

24 And will you draw where the -- so you think

25 you -- your arrest team was specifically in the middle

26

1 of the street there?

2 A Well, the -- the line of the -- the South

3 Patrol team stretched across from curb to curb. I

4 can't say specifically that we were on one side of

5 this median or not.

6 Q Okay.

7 A But I know that when we interacted with the

8 arrestees that we went to the northeast corner.

[↑ Summary](#)

9 Q Okay.

10 A So I -- I can't say specifically where we

11 were at the time, but I know we responded to the

12 northeast -- towards the northeast corner.

13 Q Got it. So can you draw -- well, I guess

14 before you draw, can you just tell us what you

15 remember? So the -- the line forms and your officers

16 are behind the lines.

17 A Yes.

18 Q And -- and you said that your officers

19 responded to the northeast corner.

20 A Yes.

21 Q What -- what actions do you remember you and

22 your officers taking after you arrived at Washington

23 and Tucker?

[↑ Summary](#)

24 A As we advanced down northward on Tucker

25 towards Washington, again, we're behind the -- the

[↑ Summary](#)

1 South Patrol team line. We're the arrest team two.

2 The line is advancing. The line makes its way to the

3 area of Tucker and Washington. I -- I can't say that

4 it went into the intersection or anything, but I know

5 it's close to the intersection.

6 Commands are being given, and when the

7 command was given to make contact, again, the line

8 would separate. We go out. We make the contact, pick

9 the people up. Our two guys in the rear, you know,

10 taps us on the shoulder, gives us some kind of signal

11 it's clear for us to come back. We bring the people

12 back through the line, the line closes, and we convey

13 them to whatever the transfer point is and transfer

14 them to that personnel. And if we have to go make

15 another arrest, we go back. If not, then our job has

16 been done, and we go back to formation until the next

17 instruction comes.

[↑ Summary](#)

18 Q Okay. Couple questions. One, do you

19 remember where the transport station was? So were you

20 taking them south? North?

21 A There were -- there were vans behind us. I

22 can't say exactly if they had them all over the place,
23 but I know we had -- we would bring them back to --
24 through our line to almost where we started, beyond
25 where we started or where we made contact to transfer

28

1 them to the next team to process them.

2 Q And when you say behind you, you mean south
3 on Tucker?

4 A Yes. We would have picked them up from the
5 intersection and conveyed them back southward, back
6 towards the direction that we had just come from.

7 Q Do you remember whether those transport
8 buses -- vans?

9 A Vehicles. I -- I can't --

10 Q Vehicles.

11 A -- remember if it was vans or buses.

12 Q Do you remember if those were on the east
13 side of the street? West side of the street?

14 A I think -- I think more towards the middle.

15 Q Okay.

[↑ Summary](#)

[↑ Summary](#)

16 A Kind of towards the -- because there's a

17 median at some point. I think it's more towards

18 the -- the -- the middle of the street because, I

19 guess, it's just easier to not have to go to either --

20 I'm sorry -- to go to either sidewalk --

21 Q Right.

[↑ Summary](#)

22 A -- but put them in the middle and we can

23 take them right there and both teams can go back to

24 where they need to go from the middle.

25 Q Oh, sorry.

29

1 A From the middle.

2 Q Yeah. Who would you leave the -- the

3 arrestees with?

4 A Whoever the processing people were, and I --

5 I wasn't trying to take names or anything.

6 Q Yeah.

7 A We just knew what -- what they were there

8 for and we conveyed the arrestees there, transferred

[↑ Summary](#)

9 them to those people, and either went back to make

10 additional contacts with protestors or back to

11 formation.

12 Q Do you remember how many times you and your

13 team sort of repeated this process, going through the

14 line, effectuating an arrest, dropping, taking

15 arrestee to transport?

[↑ Summary](#)

16 A I do not.

17 Q Do you think it was more than once?

18 A It could have been.

19 Q Do you think it was 20 times?

20 A No.

21 Q Okay. Do you --

22 A It was not more than 20, no.

23 Q Do you think it was ten?

24 A No. It was not.

25 Q Do you think it was five?

30

1 A Somewhere between one and five I could --

[↑ Summary](#)

2 Q Okay.

3 A So yes.

4 Q Somewhere between one and five. Okay. Will

5 you draw a -- a "2" on the map for roughly where you

6 remember picking up -- or --

7 A Making contact?

8 Q Yeah, making contact. So if you keep in

9 mind on that, you see that -- you know, you see the

10 sidewalk and kind of light poles; so where you

11 remember.

12 Okay. Yeah. So in between the "1" and the

13 "2," right before you went to go effectuate the

14 arrest, will you kind of like draw in between those

15 where your team was before you effectuated the arrest?

16 So -- because you said -- I think you testified --

[↑ Summary](#)

17 correct me if I'm wrong -- I think you testified your

18 team moved up more?

19 A The team moves with the line. As the

20 line --

21 Q Got it.

22 A -- advances, the team is -- the arrest team

23 is right there behind the line. So as the line moves,

24 the team moves with them.

25 Q Okay.

[↑ Summary](#)

1 A Now, as to our position in the street, I

2 really can't say where exactly we were.

3 Q Yeah.

4 A But I -- I think it's safe to say that we

5 were closest to this northeast corner.

6 Q Okay. Will you make just like a little --

7 maybe draw like a little line from where you think in

8 the street you were before -- before moving in to

9 effectuate the arrest?

10 A So make an attempt to connect the 1 and the

11 2?

[↑ Summary](#)

12 Q Well, because you -- I think you said that

13 you were closer to the east side of the street --

14 right? -- so that you kind of moved over there? Is

15 that -- is that, in fact, accurate?

16 A That -- it's -- it's most direct to where we

17 were coming from. So we went to this corner. I can't

18 say whether we were coming from over here or closer to

19 the center, but I know we were -- if there is a center

20 line, we would have been to the right of that center

21 line.

22 Q Oh. Okay. Yeah. Do you want to just hold

23 up the map for the camera and then just kind of with

24 your finger show where you think -- where you think

25 you came from directly before the 2.

[↑ Summary](#)

32

1 A We would have come from somewhere --

2 Q Yeah.

3 A -- back here.

4 Q Got it.

5 A To --

6 Q Perfect. Okay. Do you -- so 2, from my

7 understanding, is where you -- you effectuated

8 your first --

9 A Where we made contact, yes.

10 Q Yeah. So -- and you stated before that you

11 believe you -- your team effectuated more than one

12 arrest or -- or you could have effectuated more than

13 one arrest?

14 A Yes.

[↑ Summary](#)

15 Q Were all -- from your memory, how many of
16 those arrests you effectuated happened in a similar
17 location to the -- to the 2; so off of the sidewalk
18 sort of towards the -- the outer rim of that sidewalk?
19 Do you think all of the arrests --

20 A All of them --

[↑ Summary](#)

21 Q -- were effectuated there?

22 A -- would have come from there.

23 Q Okay. Did you -- do you remember, at any
24 point, going onto the sidewalk closer to the -- to
25 the -- to the building itself to effectuate an arrest?

33

1 A No. No.

2 Q Okay. After you -- you know, after the
3 period of time in which these arrests were
4 effectuated, what did your team do at that point?

5 A You want to elaborate on it? After -- are
6 you referring to after we picked these people up from
7 the ground here and conveyed them back to the transfer
8 point?

[↑ Summary](#)

9 Q Mm-hmm. Yeah. So -- and I believe you

10 stated that there's a possibility that happened a

11 couple of different times. Where would your team have

12 gone after every arrest you effectuated was finished?

[↑ Summary](#)

13 A After all of the arrests was fin- -- were

14 finished, we would have gone back to formation and

15 waited for the next set of instructions. So -- so we

16 would have picked these people up, brought them back

17 through the line, dropped them off with the transfer

18 team, and if there were more arrestees, we would have

19 gone back, picked up the next set, taken them to the

20 same point. And once it was done, that they were all

21 picked up, we would have gone back to our original

22 formation.

23 Q And what was your original formation?

24 A Behind the -- the line that had set up.

25 Q Okay. Do you remember at what point someone

[↑ Summary](#)

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1 gave you an order to, I guess, stand down or be done?

2 A No, I don't remember the point, but

3 obviously it was given at some point because we did

4 stand down.

5 Q Sure.

6 A But I don't know -- I can't say exactly when

7 that was.

8 Q And who -- I mean, from your memory, who

9 was -- do you remember any of the names of who was

10 giving you orders that night? What commanders?

11 A We had Brian Rossomanno. Randy Jemerson was

12 there. There were -- I can't say with any degree of

13 certainty, outside of hearing Brian talk, who the

[↑ Summary](#)

14 other commanders might have been to give us

15 instruction.

16 Q If you will look on that page 8 again, the

[↑ Summary](#)

17 roll call sheet. At the top of it, there's a

18 lieutenant listed SP -- and the duties say SPD -- S --

19 hold on -- "SPD Team 2 Commander," and it's Lieutenant

20 Bill Kiphart. Do you have any memory of him giving

21 you instructions or any specific commands coming from

22 him?

23 A No, I don't remember any commands coming

24 from him.

25 Q Okay. Do you remember seeing him that

35

1 night?

2 A I remember seeing him. I can't say whether

3 it was this night or another night, but I remember

4 seeing him.

5 Q Sure. Okay. Okay.

6 MS. HANLON: You want to watch a video?

7 MS. DRAKE: Sure.

8 Q (By Ms. Hanlon) All right. We're going --

9 we're going to watch a video.

10 A Sure.

11 Q We believe the technology will work for us.

12 Oh, look at that.

13 A Hey, look at that.

14 MS. HANLON: So -- yeah, I guess we could.

15 Q (By Ms. Hanlon) Actually, Sergeant

16 Valentine, will you turn to just the very first

17 exhibit here. This is an aerial photo of the mass

18 arrest. This is -- we're not quite sure at what point

[↑ Summary](#)

[↑ Summary](#)

19 during the mass arrest this was taken, but this is

20 taken -- you know, it's an aerial shot of this.

21 Looking at this photo -- and we can get it

22 up on the screen so you can kind of point to it.

23 Where do you believe your team might -- where do you

24 believe -- first of all, do you see your team depicted

25 in this?

[↑ Summary](#)

36

1 A I'm not really familiar with the orientation

2 of where we are right now; so if -- if you can give me

3 a little guidance on the street setup.

4 Q Yeah.

5 A Because downtown is not my area of patrol.

6 Q Got it.

7 A So --

8 Q Got it.

9 A -- I'm really not familiar.

10 Q So if you look -- so if you look at the

11 screen, I'll do this for the camera, this is the --

12 this is north. So this is Tucker. So this is the

[↑ Summary](#)

13 northwest corner of Washington and Tucker. This is

14 the northeast corner of Washington and Tucker.

15 A Okay.

16 Q And this is Washington.

17 A Okay. So --

18 Q So --

19 A -- so you want me to go up there and --

20 Q Yeah, go up there and see if you can help

21 us --

22 A Okay. So --

23 Q -- understand what we're looking at.

24 VIDEOGRAPHER: Your wire will reach.

25 A Okay. So if this is the northeast corner --

[↑ Summary](#)

37

1 Q (By Ms. Hanlon) Yeah.

2 A -- we would have been over here.

3 Q Okay.

4 A We would have come from this area --

5 Q Got it.

6 A -- right here.

[↑ Summary](#)

7 Q Uh-huh.

8 A And the people that we made contact with

9 would have been somewhere in here --

10 Q Okay.

11 A -- closer -- closer to the -- to the curb.

12 Q Yeah. Do you -- do you remember -- there's

13 like a trashcan on that curb. Do you know if the

14 people would have -- do you remember anything about

15 the trashcan orientation?

16 A No.

17 Q No. Okay. I'll see if you can -- so --

18 so -- but from your memory, you're -- you're pretty

19 sure the people that you arrested were off of the curb

20 and in the street?

21 A Yes, they were -- they were -- would have

22 been in this area right here.

[↑ Summary](#)

23 Q Got it. Okay. And then just immediately

24 south of that, what look like those lines of officers,

25 can you help us understand who those -- who those

1 lines are?

2 A I would assume that this is a part of the

3 South Patrol team and our arrest team would have been

4 back here.

5 Q Yeah.

6 A Bike unit there. They stand out, but I

7 can't say where the --

8 Q Yeah.

9 A -- other teams came from.

[↑ Summary](#)

10 Q Okay. All right. So we're going to watch a

11 video of the night. So were you that night -- do you

12 remember being aware that there was a documentation

13 team?

14 A For the department?

15 Q Mm-hmm.

16 A Yes, there's a documentation team.

[↑ Summary](#)

17 Q Okay. Do you remember seeing them or you --

18 A I don't know who they are.

19 Q Okay. I mean, do you remember seeing people

20 documenting that night?

21 A I didn't give it that much attention.

22 Q Okay.

23 MS. HANLON: Let's do 74.

24 (The video was played.)

25 MS. HANLON: Okay. So pause.

39

1 Q (By Ms. Hanlon) This is -- so this is the

2 documentation team video. Is the orientation of this

3 video clear to you as of right now? My guess is going

4 to be no.

5 A Let that play.

6 Q Yeah.

7 (The video was played.)

8 MS. HANLON: Yeah. Get us back to the very

9 beginning.

10 Q (By Ms. Hanlon) So do you see where it says

11 Washington in the top right-hand corner?

12 A Yes.

13 Q Okay. So this is looking north on Tucker.

14 So this documentation team is behind the line of

15 officers walking north on Tucker.

16 A Okay.

[↑ Summary](#)

17 Q So the -- where you see the -- in the top

18 left-hand corner of the screen is the Escape the Room.

[↑ Summary](#)

19 That's the northwest corner, and then this is -- so,

20 you know, we're facing Washington; so --

21 A So this line here is facing -- facing

22 Washington from the south.

23 Q Mm-hmm.

24 A Facing northward.

25 Q Yep.

40

[↑ Summary](#)

1 A Okay.

2 Q So -- and is that the line of officers you

3 were in or you were just behind?

4 A I would have been coming from that region,

5 yes.

6 Q Okay. So -- okay. Great. So this is the

7 orientation of the video. As you can see, there's a

8 lot of tape on helmets.

9 A Right.

10 Q Any -- any guesses as to if any of these --

11 does this refresh your recollection at all as to what

12 your team's tape was?

13 A No.

[↑ Summary](#)

14 Q No. Okay.

15 MS. HANLON: All right. Press play.

16 (The video was played.)

17 MS. HANLON: Okay. Pause, please. Okay.

18 Q (By Ms. Hanlon) Do you have a guess as to

19 where your team is here?

20 A Right now? No.

21 Q Okay. Do you recognize any of the officers?

22 A No.

23 Q Okay. Do you recognize any of the folk --

24 so -- so it appears that these lines of officers

25 are -- are walking and then it looks like there's a

41

[↑ Summary](#)

1 couple other people behind them who are dressed sort

2 of differently --

3 A Yes.

4 Q -- who are not in the full black gear but

5 have like short-sleeve shirts on.

6 A Right.

7 Q Who would those folks be?

8 A I don't know. I really wasn't concerned

9 about who -- who they were assigned to.

10 Q Okay.

11 A So I really can't say exactly what their --

12 their role is. Being behind us, I -- I can't say.

13 Q Okay. All right. Do you -- do you have a

14 sense of where your team would be in this shot?

15 A A sense of where the team would be?

16 Q Yeah.

17 A Yes, I have a sense of where the team would

18 be.

19 Q Will you show us even if we can all agree

20 that it's -- it's a -- it's a sense only?

21 A My sense is our team would be somewhere in

22 here.

23 Q Yeah. And why -- why is that your sense?

24 A Because, like I said, we made approach to

25 the northeast corner and we were on -- closer to the

[↑ Summary](#)

[↑ Summary](#)

1 east side of the street than the west side curb. So

2 marching forward, we would have still been in that

3 same type of positioning as we advance forward.

4 Q Okay.

5 MS. HANLON: All right. Okay. Play. Oh,

6 yeah. Yes. What minute are we at? Okay. So this is

7 Plaintiff's 74 -- nope -- oh, I'm so sorry. This is

8 Plaintiff's -- Plaintiff's 5, not 74. Plaintiff's 5,

9 video 74, minute 6 -- 6 seconds. Not 6 minutes.

10 Goodness.

11 A One of my guys has a drug screening today.

12 He's calling. I need to get him set up to go take his

13 drug screening.

14 MS. RAIMONDO: Do you want -- do you want to

15 take a break?

16 MS. HANLON: Yeah, do you want to go off the

17 record for a minute?

18 THE WITNESS: Yes, please, so I can call

19 him --

20 MS. HANLON: Yeah, that's fine.

21 THE WITNESS: -- have him --

[↑ Summary](#)

[↑ Summary](#)

22 VIDEOGRAPHER: The time is 10:51. We're off
23 the record.
24 (Whereupon, a short break was taken.)
25 VIDEOGRAPHER: The time is 10:54. We're

43

1 back on the record.

2 Q (By Ms. Hanlon) All right. So, Sergeant

3 Valentine, we're going to press play again.

4 (The video was played.)

5 MS. HANLON: Pause quickly.

6 Q (By Ms. Hanlon) So the -- and I don't mean

7 to belabor this point because I know you said you

8 weren't paying much attention to who -- who else was

9 around, but the gentleman in the lower left-hand

10 corner in the white shirt.

11 A Yeah.

12 Q Am I correct that white shirts imply some

13 kind of rank?

14 A Yes.

15 Q Okay. Do you have any guesses as to who

[↑ Summary](#)

16 that would be?

17 A No, but anyone above -- lieutenant and above

18 would be a white shirt. Lieutenant through the

[↑ Summary](#)

19 chief --

20 Q Okay.

21 A -- wears a white shirt.

22 Q Okay. But you don't recognize who that

23 specifically is?

24 A No. That could have also been an EMS

25 supervisor. They wear -- wear white shirts as well,

44

[↑ Summary](#)

1 but --

2 Q A which kind of supervisor?

3 A EMS.

4 Q What does EMS stand for?

5 A Emergency Medical Service. The ambulance

6 people.

7 Q Oh.

8 A Fire -- fire personnel.

9 Q Yeah.

10 A That could have easily been a EMS person

11 there. I'm not saying that it is, but --

12 Q Uh-huh.

13 A -- they would have been out there as well

14 for injuries.

15 Q Mm-hmm.

[↑ Summary](#)

16 A So they could have been anybody from an EMS

17 supervisor to a police supervisor -- a police

18 commander.

19 Q Got it. Okay. All right.

20 A Unless you can find the patch on the sleeve.

21 That would signify who it is.

22 (The video was played.)

23 MS. HANLON: Pause, please.

24 Q (By Ms. Hanlon) So do you see a team on

25 the -- on the right-hand corner starting to move in

45

1 towards the arrestees?

[↑ Summary](#)

2 A Yes.

3 Q Okay. Do you think that's your team?

4 A It could be.

5 Q Okay. Okay. Will you go up and point to

6 where you see the -- see the team?

7 MS. HANLON: Try playing it.

8 (The video was played.)

9 A Okay. You're talking about this?

10 Q (By Ms. Hanlon) Yeah. Do you think those

11 are your folks or no?

12 A Trying to find myself.

13 Q Yeah. Let's keep playing a little bit and

14 then we can go back and forth and see if you see --

15 (The video was played.)

16 Q (By Ms. Hanlon) I should explain that the

17 camera moves which makes it a little tough. Any --

18 any luck seeing yourself yet?

19 A Nope. I'm looking for my stripes.

20 Q You were wearing a face mask?

21 A Yes.

22 Q Okay. Do any of the arrestees look

23 familiar, like anyone that you remember, you know,

24 like, oh, orange sweatshirt?

25 A At -- at this point, I can't -- I can't

[↑ Summary](#)

[↑ Summary](#)

1 separate anybody out.

2 Q Yeah.

3 A There's a lieutenant right there unmasked.

4 Q Who is -- do you know who that is?

5 A Let it play.

6 (The video was played.)

7 A Looks like Lieutenant Joyner.

8 Q (By Ms. Hanlon) Yeah. Okay. It's minute --

9 minute 3. Will you just point on the screen to where

10 you see Lieutenant Joyner?

11 A Here.

12 Q Great. Okay. Okay.

13 (The video was played.)

14 Q (By Ms. Hanlon) Do you remember your

15 officers always walking arrestees south on Tucker?

16 A That's what they should have done.

17 MS. HANLON: Okay. Pause here for a sec.

18 Q (By Ms. Hanlon) So like that individual, if

19 you look at the lower right-hand corner of the screen,

[↑ Summary](#)

[↑ Summary](#)

20 there's a white man with kind of like floppy hair

21 being walked out.

22 A Are you making reference to this person

23 here?

24 Q Yes, exactly. So they should have been

25 walking arrestees the way that -- that individual is

47

1 being walked? They should have been walking them

2 south?

3 A That's where my -- my team should have taken

4 them back to, that direction.

5 Q So he is only being escorted by two

6 officers, and that -- that seems -- if I'm watching

7 this video correctly, a lot of folks seem to be being

8 escorted by one or two officers. Do you remember

9 that -- do you remember your team escorting people

10 out -- how -- how many officers from your team do you

11 remember escorting out folks you arrested?

12 A I don't remember how many they escorted out.

13 Q Mm-hmm.

[↑ Summary](#)

14 A That is the technique that they should have
15 followed, that everyone should have been escorted with
16 two officers no matter what they were -- had been
17 doing prior. Everyone should have been escorted by
18 two.

19 Q Okay. Where would the other four officers
20 go then if -- if two are being --

21 A If we're following protocol, they would have
22 been standing guard to keep the first two -- the --
23 the second two from being assaulted in either
24 direction.

25 Q So they would have been -- they would have

[↑ Summary](#)

48

[↑ Summary](#)

1 been with them then.

2 A But looking at this, they might have been in
3 there making an arrest as well.

4 Q Okay. Yeah.

5 (The video was played.)

6 Q (By Ms. Hanlon) And just -- I mean, any
7 moment you see anyone you know, if you think you see

8 yourself, you think you see your team.

9 A I thought it would be a little easier to

10 make out, but --

11 Q You know, Sergeant, we all did.

12 MS. HANLON: Will you pause for a second?

13 Q (By Ms. Hanlon) The individual towards the

[↑ Summary](#)

14 right-hand corner with the orange bandanna around his

15 neck --

16 A Uh-huh.

17 Q -- is there any chance you think your team

18 arrested him?

19 A I can't say certainly with any degree of

20 certainty that they did.

21 Q Okay.

22 A I don't know.

23 Q Okay. Have you seen anyone -- I mean, have

24 you -- so there's a number of people being walked out.

25 When you see these folks on screen, are you not sure

[↑ Summary](#)

1 where your team is in this; so you think it -- your

2 team could be really any of the officers?

3 A At this point?

4 Q Yeah.

5 A I'm not sure where my -- where my team is

6 mixed into this.

7 Q Okay. So when officers are walking

8 individuals out, you think they could be members of

9 you team, but you're not sure.

[↑ Summary](#)

10 A They could be. I'm not sure.

11 MS. DRAKE: Play?

12 MS. HANLON: Yeah.

13 (The video was played.)

14 Q (By Ms. Hanlon) Anyone you recognize on

15 screen at this point?

16 A Having been involved in this, I thought this

17 was a little bit smoother than it -- it appears.

18 Q What do you mean by that?

19 A I thought it was less chaotic than it

20 appears on this video.

21 Q What do you mean by that?

22 A It -- it -- it -- going in and coming out

23 seemed to be -- this -- being there, I don't remember

[↑ Summary](#)

24 having that many officers around me as -- as we went

25 in, but honestly there were more. I guess I was

50

1 focused a little bit differently on -- on making the

2 arrest, but I don't remember it being so compacted

3 like it was on this corner.

4 Q Mm-hmm. Okay.

5 MS. HANLON: So let's pause there.

6 Q (By Ms. Hanlon) I think that's most of

7 the -- yeah. So having watched this video once, we're

8 going to show you a different video from a different

9 angle.

10 A Okay.

[↑ Summary](#)

11 Q Does this refresh your recollection at all

12 about where you think your arrest team might have --

13 which -- which of these arrest -- arrestees you might

14 have made contact with, you and your arrest team?

15 A No. When I was there, I talked to a guy,

[↑ Summary](#)

16 but I wouldn't remember what he looks like now. But I

17 couldn't tell you -- I couldn't link up faces and --

18 and team members of who was making contact with who.

19 Q When you say you talked with a guy, you mean

20 you talked with an arrestee?

21 A Yes.

22 Q Was he white? Black?

23 A He was white.

24 Q Will you turn to exhibit -- let's just start

25 with Exhibit 42. If you want to just take a minute to

51

1 flip through about -- there's about ten photos of --

2 A Exhibit 42?

3 Q Mm-hmm. It should be on page -- page like

4 16, 17. Yeah, there should be ten or 11 pages of --

5 A Okay. That's 42.

6 Q Mm-hmm.

7 A Forty-three.

8 Q Stop me if any of these folks look familiar.

9 A Forty-four.

10 Q Some of them are obviously not men, but --

11 you think that was him?

[↑ Summary](#)

12 A I can't -- I -- I wouldn't be able to

13 identify him. I remember talking to -- to a guy that

14 we picked up as he was being escorted back, but I --

15 Q You -- you -- you don't think even if you

16 saw a photo of him?

17 A No.

[↑ Summary](#)

18 Q Is this him, the one you're on right now,

19 Exhibit 49?

20 A I don't know.

21 Q You don't know. Okay.

22 A I don't remember what he was wearing. I

23 know he was white.

24 Q Do you have any -- did he appear to be

25 doused in pepper spray?

[↑ Summary](#)

52

1 A His eyes were red.

2 Q Mm-hmm.

3 A But I wouldn't say he was doused, but I know

4 he was feeling the effects of --

5 Q Yeah.

6 A -- exposure to something.

7 Q Height? Weight? Taller? Taller than you?

8 A I don't think he was taller than me. Maybe

9 my height.

10 Q Age? Older? Younger?

11 A I can't speculate on his age.

[↑ Summary](#)

12 Q Okay. Okay. All right. Let's -- yeah, you

13 can stop now. Let's -- we'll get into other photos.

14 Yeah, did any of those other arrest photos

15 you looked at, did any of those folks look familiar to

16 you?

17 A No.

18 Q Okay. Did the officers look familiar?

19 A Starting with 42? Or where -- where are we

20 going to start? Forty-one?

21 Q Well, I guess with the officers, a question

22 I have -- so like, if we go to like, for example,

23 Exhibit 45. This is just as an example.

24 A Okay.

25 Q What is your understanding of -- you know,

[↑ Summary](#)

1 it says officer's name, Koerper, written down. First
2 of all, do you recognize the individual standing next
3 to him?

4 A The officer or the arrested person?

5 Q The officer.

6 A No, I don't know who he is.

7 Q Okay. I was going to ask if you knew if

8 that was, in fact, Officer Koerper.

9 A No, I don't know him.

10 Q But, I mean, do you -- what is your
11 understanding -- what is your memory of who those
12 officers -- how -- how is it decided which officer
13 would be listed on -- on that as the arresting
14 officer?

15 A I don't know how it was decided, but I don't
16 know if this -- if this is Koerper or not.

17 Q Mm-hmm.

18 A But I'm assuming that whoever handed this
19 person off, I'm assuming that that would be their
20 name.

21 Q So when your team handed arrestees off,

[↑ Summary](#)

22 would -- would your officer's name be written down as

[↑ Summary](#)

23 the arresting officer?

24 A I'm assuming it should be.

25 Q Were they asked to take a photo with the

54

1 arrestee?

2 A I don't remember taking a photo with them.

3 Not saying it didn't happen. I just don't remember.

4 Q Okay. Okay. Let's watch the next video and

5 see if we can see him. Let's do video five -- or

6 four. Sorry.

7 A Like this person here, I can't make out the

8 nameplate --

9 Q Yeah.

[↑ Summary](#)

10 A -- but --

11 Q Which exhibit are you on? I'm sorry.

12 A Forty-one.

13 Q Forty-one? Yeah.

14 A I can't make out the nameplate to say

15 whether or not to associate the names with that

16 nameplate.

17 Q Yeah. Yeah. Do you -- do you recognize any

18 of these officers here?

[↑ Summary](#)

19 A That's Tim Bockskopf in the blue, the polo

20 shirt.

21 Q The -- the bike polo shirt looking one?

22 Yeah, the one on the left.

23 A Polo shirt. And then the regular uniform

24 shirt is Matt Burle. I think his first name is Matt

25 and his last name is Burle.

55

1 Q Burle. That's Matt Burle.

2 A Yeah.

3 Q Okay.

4 A But I don't -- I don't know if that's who's

[↑ Summary](#)

5 arresting him or not.

6 Q Okay. Yeah. Will you look through again --

7 well -- yeah. Will you look through again Exhibits 41

8 through 54 and see if you see any of the officers on

9 your team. Are any of your officers photographed in

10 these?

11 A No, I don't see any of the officers assigned

12 to me in any of these.

13 Q Okay. All right. We're going to watch a

14 different video. So this is -- well, one thing I

15 forgot to ask. The previous video we watched, have

16 you ever seen that video before?

17 A No.

18 Q Have you ever seen any videos from the night

19 of the -- the mass arrest?

[↑ Summary](#)

20 A Other than the news.

21 Q Yeah. No, I mean have you other than that?

22 A No.

23 Q Okay. This is a video from an RTCC camera,

24 so a Real Time Crime Center camera. Are you familiar

25 with those cameras?

56

[↑ Summary](#)

1 A I'm not familiar with the cameras, but I

2 know what RTCC is.

3 Q Okay. So this is a -- a video from --

4 from -- from one of those cameras. It is -- are you

5 oriented as to where those cameras are looking at

6 this?

7 A No.

8 Q So this is -- this is the southeast corner

9 of Tucker.

10 A Okay. That right there, where the guy with

11 the bike?

12 Q No. Sorry. So the camera is stationed on

13 the southeast corner.

14 A Oh, the camera is supposed to be stationed

15 there.

[↑ Summary](#)

16 Q And it's going to catch -- you know, the

17 cameras swivel so they don't stay --

18 A Okay. Sure.

19 Q -- stationary. So this is, again, looking

20 north on Tucker, roughly.

21 A Okay.

22 Q So it's sort of looking -- this one is sort

23 of looking northwest. So if you can see Escape the

24 Room, that business is on the northwest side. Where

25 the individual with the bike is is the northeast

1 corner of Tucker.

2 A Okay.

3 Q Does that help --

4 A Okay.

5 Q -- orient you?

6 A I'm -- I'm -- I'm -- I'm orientated.

7 Q You're orientated?

8 A Yeah.

9 Q Okay. Just out of curiosity, do you

10 remember at any point touching a bike?

11 A No.

12 Q A bike of a protester?

13 A No. I don't remember touching a bike.

14 Q Okay.

15 MS. DRAKE: Play?

16 MS. HANLON: Yep.

17 (The video was played.)

18 MS. HANLON: Pause for a sec.

19 Q (By Ms. Hanlon) Do you remember this car?

20 A I remember seeing the car.

[↑ Summary](#)

[↑ Summary](#)

21 Q Yeah. Do you remember anything -- I mean,
22 do -- were you or your officers involved?
23 A I don't know how -- I don't know how it got
24 in there, but --
25 Q That's a prank question. Yeah.

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[↑ Summary](#)

1 A I remember seeing it.
2 Q Yeah. Were you or your officers involved
3 in -- in dealing with the car?
4 A No, I don't even think we made it to the
5 intersection yet.
6 Q Okay.
7 MS. DRAKE: Play?
8 MS. HANLON: Play, yeah.
9 (The video was played.)
10 MS. HANLON: Pause a second.
11 Q (By Ms. Hanlon) Do you know who the white
12 shirt in the middle of the screen is?
13 A No.
14 MS. HANLON: Play.

[↑ Summary](#)

15 (The video was played.)

16 MS. HANLON: Pause.

17 Q (By Ms. Hanlon) Do you know who the -- the

18 gentleman with the backpack is?

19 A Backpack.

20 Q You see the backpack that says police? It's

21 like in camo.

22 A Yeah. I don't know who it is.

23 Q Do you know if that's who -- who

24 traditionally carries those types of backpacks?

25 A I don't know what it's in that backpack. I

[↑ Summary](#)

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1 don't -- I -- I can't -- I don't know what's in it. I

2 don't know what it's carried for.

3 Q Okay.

4 (The video was played.)

5 MS. HANLON: Pause for a second.

6 Q (By Ms. Hanlon) The officers to the lower

7 part of the screen all appear to have blue tape on the

8 back of their helmets.

[↑ Summary](#)

9 A Okay.

10 Q Any chance that's your color tape?

11 MS. RAIMONDO: I'll object as to

12 speculation.

13 A I'm not sure -- I'm not sure what the --

14 what our colors were.

15 Q (By Ms. Hanlon) Okay.

16 MS. HANLON: Play.

17 (The video was played.)

18 MS. HANLON: I would say pause for a second.

19 Maybe if we can go back a little bit.

20 Q (By Ms. Hanlon) So I sort of see a group in

21 the lower right-hand corner.

22 MS. HANLON: Play, I think. That's okay.

23 No, that's perfect.

24 Q (By Ms. Hanlon) Do you see that group in the

25 kind of lower right-hand part kind of appears to be

[↑ Summary](#)

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1 walking north from the south line?

2 A By group, you mean group of officers or

3 group of --

4 Q Yeah, group of officers. Did you see that

5 at all?

[↑ Summary](#)

6 MS. HANLON: Can you go back again?

7 A Okay. Let's try -- let's try rewinding that

8 again.

9 MS. HANLON: One more time.

10 (The video was played.)

11 MS. HANLON: I would say go a little further

12 because it's when they -- they zoom in. So they kind

13 of zoom in on -- on those gentlemen over there.

14 Q (By Ms. Hanlon) So if you are watching kind

15 of the south line of people, I'm trying to watch for

16 who -- what groups come up from the south line since

17 that's where you described yourself as coming.

18 Do you see your team in any of these groups

19 kind of that are walking north there? Do you see

20 yourself anywhere?

[↑ Summary](#)

21 A I don't see anything that resembles me yet.

22 Q Okay. Okay.

23 MS. HANLON: We can keep going then.

24 (The video was played.)

25 Q (By Ms. Hanlon) Anything yet in terms of

61

1 finding yourself? Any luck?

2 A I don't see me or anything that looks like

3 me in any of the videos.

4 Q You're looking for the -- you're looking --

5 how are you looking to identify yourself, just out of

6 curiosity?

7 A I'm -- I'm -- I'm trying to -- I'm trying

[↑ Summary](#)

8 to -- I know we didn't come from here; so I'm

9 trying --

10 Q Yeah.

11 A -- to see what's entering the picture from

12 here.

13 Q Got it. Do you think some of your officers

14 would remember who they were specifically arresting?

[↑ Summary](#)

15 MS. RAIMONDO: I'm going to object that the

16 question calls for speculation.

17 A I can't -- yeah.

18 MS. RAIMONDO: You -- I mean, you can still

19 go -- you can still answer, sir.

20 A I can't say whether or not they would recall

21 who they arrested or who they made contact with

22 because I don't think they arrested anyone. They just

23 picked them up and conveyed them to transport points.

24 I don't think -- I don't think -- I can't -- I can't

25 say whether they would recall that or not.

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[↑ Summary](#)

1 Q (By Ms. Hanlon) Okay.

2 MS. HANLON: Let's pause for -- will you

3 pause the video a second?

4 Q (By Ms. Hanlon) So what do you mean by they

5 just picked them up and conveyed them?

6 A You see how the people are laid out on the

7 street there?

8 Q Mm-hmm.

9 A My team would have picked them up, brought

10 them back to the transfer point, I guess where these

11 pictures were taken --

12 Q Got it.

13 A -- after the fact. That's how these people

14 got to be in these pictures by having the arrest teams

15 convey them back to these transfer points.

[↑ Summary](#)

16 Q So what does -- what does "make an arrest"

17 mean to you when I -- when I've been saying that?

18 MS. RAIMONDO: I'm going to object that this

19 is outside of the scope of identifying John Doe

20 officers. You can answer.

[↑ Summary](#)

21 THE WITNESS: Answer?

22 A What does "make an arrest" mean?

23 Q (By Ms. Hanlon) Well, because you -- you

24 said you distinguished between picking someone up and

25 making an arrest.

63

1 A Making an arrest is a process. There's a

2 booking sheet. There's the signatures identifying

3 them. That when -- when -- when this person is

4 running REJIS or MULES through an arrest register,

5 you'll see who handled that person.

6 Q Yeah.

[↑ Summary](#)

7 A I'm not sure if that's -- that's what's

8 going on here.

9 Q Right.

10 A Beside the fact that these people are being

11 removed and conveyed to a transfer point, I don't know

12 if you would call that an arrest by the -- the -- the

13 process that -- that goes with making an arrest.

14 Q So specifically, do you remember your team

15 making initial contact with any civilians, being the

16 first SLMPD officers to make physical contact with any

17 arrestees?

18 A No, I wouldn't say we were the -- we made

19 first contact with. I remember my team being there,

20 but I can't say what order the contacts were made.

21 Q Did -- did officers on your -- your team zip

22 tie any arrestees?

23 A I would assume they did.

24 Q Okay. Did officers on your team instruct

25 civilians to move from sitting to laying on the street

[↑ Summary](#)

[↑ Summary](#)

1 or -- or any precursor to being zip tied?

2 A I can't say what kind of conversation they

3 might have had with any of the people that they made

4 contact with.

5 Q Okay. So if I'm understanding your

6 testimony, you -- after watching these -- some of

7 these videos, you still feel sure that you can

8 identify the area where you and your team were, but

9 you so far have not been able to visually --

10 A Yes --

11 Q -- identify your area?

12 A -- I can identify the area that we went to.

13 Q Mm-hmm.

[↑ Summary](#)

14 A But with all of the bodies there, I

15 cannot -- I can't even pick myself out of this crowd.

16 Q So a couple other questions about what you

17 remember -- you remember your team -- team taking --

18 actions taken or not taken. Were you the only member

19 of your team that had a larger canister of -- of OC

20 spray or of pepper spray?

21 A I should have been --

22 Q Okay.

23 A -- the only person to have the fogger.

24 That's something that's typically given to supervisors

25 and not team members.

65

[↑ Summary](#)

1 Q Would your team have been carrying any form

2 of chemical munitions of any kind?

3 A Probably the only ones that they carry every

4 day on their -- their belt, the small canisters.

5 Q Did anyone on your team deploy pepper spray

6 on a civilian?

[↑ Summary](#)

7 A Not that I know of. I don't think any of my

8 team members deployed pepper spray on any civilians.

9 Q Did you see any pepper spray get deployed on

10 civilians?

11 A I did not see pepper spray get deployed on

12 civilians. Just looking at their reaction, they were

13 irritated by something, but I -- I didn't see it being

14 deployed on them.

15 Q Did your team deploy any strikes or --

16 A No.

17 Q -- holds or -- or some sort of force on

18 civilians?

19 A No, I don't think my team -- I don't

20 remember or think my team would have had reason to do

21 that.

[↑ Summary](#)

22 Q Okay. Did you see any other officers deploy

23 strikes or --

24 A I -- I did not see it. I did not

25 see other -- I know my team did not. I can't speak

66

1 for the other people, but I know my team did not touch

2 people that way.

3 Q And how would you -- how would you know your

4 team did not touch people that way?

5 A I went in with my team. Now, I couldn't be

6 with all of them, but we kind of went to the same area

7 and I know the ones that I could see did not. I was

8 kind of telling them how to set the people up because

[↑ Summary](#)

9 I instructed -- I -- I instructed on that for several

10 years; so I was kind of telling them how to sit these

11 people up to move them. So the ones that -- of my
12 team members that I -- that I was close to, I can say
13 they did not strike anyone or pepper spray anyone.
14 MS. HANLON: Okay. Let's take like a
15 couple-minute break. Does that make sense for
16 everyone?
17 MS. RAIMONDO: Yeah.
18 MS. HANLON: What time is it?
19 VIDEOGRAPHER: The time is 11:30. We are
20 off the record.
21 (Whereupon, a short break was taken.)
22 VIDEOGRAPHER: The time is 11:37. We are
23 back on the record.
24 Q (By Ms. Hanlon) All right. So a couple
25 quick questions, and we're going to try one more --

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[↑ Summary](#)

1 try a couple more videos, but what do you remember
2 about the interaction between your arrest team and the
3 other arrest team from South Patrol? Was there any
4 interaction?

5 A As far as what?

6 Q Were you coordinating activity with each

7 other? Did -- did you have any sense of what they

8 were doing? Were you working in tandem?

9 A I think that's kind of what the lieutenant

10 would have been doing. The lieutenant might have been

11 coordinating that for us because -- as we got our

12 team. So the lieutenant would have had that

13 flexibility to talk with the other commanders and let

14 us know what -- what strategy we would -- we would be

15 instructed on.

16 Q So you've been able to point out the -- the

17 area within this sort of larger mass arrest where you

18 and your team went.

19 A Sure.

20 Q Were you directed towards that area or how

21 did -- yeah. Were you directed towards that area?

22 A I don't remember if we were directed towards

23 that area or if we just gravitated to that area

24 because we were closest to it.

25 Q Okay. Were lieutenants or commanders

[↑ Summary](#)

[↑ Summary](#)

1 directing arrest teams towards particular individuals

2 to be picked up?

3 A I don't remember them directing them to

4 particular individuals. I don't -- I don't think that

5 happened. But to an area, that could have happened

6 if -- you know, here or there. That could have

7 happened. I don't think individuals, no.

8 Q What do you know about -- what do you

9 remember, if anything, about whether any arrests were

10 effectuated by officers from St. Louis County or -- or

11 the highway patrol?

12 A I don't. I don't know if they were effected

13 by a St. Louis County or highway patrol.

14 Q Do you remember seeing any county officers

15 there?

16 A Yes.

17 Q Okay. Do you remember seeing highway patrol

18 officers there?

19 A Yes.

20 Q Do you remember seeing any arrests get made

21 by either of those officers?

[↑ Summary](#)

[↑ Summary](#)

22 A No. The times that I saw highway patrol,
23 usually they were blocking the highways. They were
24 shutting the highways down. I don't remember
25 seeing -- I don't remember seeing St. Louis County

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[↑ Summary](#)

1 come in and make any arrests.

2 Q Okay.

3 A Not saying that didn't happen. I just don't

4 remember seeing it.

5 Q Okay. So this is --

6 MS. HANLON: You can hit play.

7 Q (By Ms. Hanlon) This is another --

8 MS. HANLON: Oh, I don't think I did.

9 Q (By Ms. Hanlon) This is Plaintiff's Exhibit

10 Number 3. This is the second RTCC camera; so it's --

11 it's going to show something similar, but we're hoping

12 the angle's a little better.

13 Technical difficulties. Standby.

[↑ Summary](#)

14 (The video was played.)

15 A We are -- we are at the same orientation?

16 Q (By Ms. Hanlon) Mm-hmm. Yes, Sergeant. So
17 there's the --
18 A Okay.
19 Q -- this very confusing car.
20 A This is going east on Washington?
21 Q Mm-hmm. Car's going east on Washington.
22 Okay. So do you --
23 MS. HANLON: Pause for a second.
24 Q (By Ms. Hanlon) Well, do you understand the
25 orientation of this?

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[↑ Summary](#)

1 A Yes.
2 Q Okay. Great.
3 MS. HANLON: You can hit play.
4 (The video was played.)
5 MS. HANLON: Pause.
6 Q (By Ms. Hanlon) So did you see that group
7 kind of come through the line?
8 A Yes.

9 Q Is that your group?

[↑ Summary](#)

10 A I'll say it could be, but I'm not certain.

11 Q Okay.

12 MS. HANLON: Yeah. Do you want -- yeah.

13 Q (By Ms. Hanlon) Will you stand up for a

14 minute and we're going to rewind just a minute. So --

15 and we'll try to -- try to catch them and have you

16 just kind of point to the group.

17 MS. HANLON: Yeah, I think so.

18 Q (By Ms. Hanlon) It's going to pan over in

19 just a second. So we'll wait for the camera to shift

20 over. So that --

21 MS. HANLON: Pause.

22 Q (By Ms. Hanlon) Do you -- will you point to

23 the group so you and I can make sure --

24 A You're referring to the group that just

[↑ Summary](#)

25 came --

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1 Q Yeah.

2 A -- through here.

3 Q Yeah. Is -- is that the manner in which an

4 arrest team would sort of approach a scene?

5 A Yes. I'm assuming this is a part of that

6 line that is open to let them come through, let the

7 arrest team come through.

8 Q But you're not -- so -- and you stated --

9 just so I'm clear, you stated that you weren't sure if

10 it was your team --

11 A I'm not sure.

[↑ Summary](#)

12 Q -- but it could be your team.

13 A It could be, but I'm not certain.

14 Q Okay.

15 MS. HANLON: So that's Plaintiff's Exhibit 3

16 at 52 seconds. Okay. We can play again.

17 (The video was played.)

18 MS. HANLON: That's how the camera moves;

[↑ Summary](#)

19 so . . .

20 Q (By Ms. Hanlon) Is this looking any --

21 any luck seeing yourself? It's -- it's a slightly

22 better angle.

23 MS. HANLON: Pause for a second.

24 Q (By Ms. Hanlon) Do you see -- so there's a

25 bike tire.

1 A Mm-hmm. I see the bike tire.

2 Q There's like a group right to the left of

3 that. Did you see that group kind of walk in, if

4 you'll point?

[↑ Summary](#)

5 A The police group?

6 Q Yeah.

7 A Here?

8 Q Yeah. It's --

9 A Okay.

10 Q Do you -- do you think any of that could be

11 your group?

12 A No. This is a sergeant here, and based on

13 what's showing on his neck, he appears to be a white

14 sergeant so that definitely wouldn't be with me.

15 Q Sure. Okay. I think that's -- well -- so

16 I'm -- I think I'm talking to the group more to the --

17 to the left of the bike, that group. Yeah.

18 A This group, yes.

19 Q Yeah. Oh, you think --

[↑ Summary](#)

20 A This sergeant was with that group --

21 Q Oh, he was.

22 A -- just a second ago. If you rewind it --

23 Q Got it.

24 A -- you'll see them kind of coming this

25 direction --

73

1 Q Got it.

2 A -- before that bike tire comes into play.

3 Q Got it. Okay. All right. Do you see

4 yourself here anywhere?

5 A No.

6 Q Do you recognize anyone on the screen?

7 A No. Not as individuals I don't recognize

8 anyone.

9 Q What do you mean by not by individuals?

10 A I mean, I can't point out, oh, that's this

11 person or that's that person. I mean, I recognize

12 them as being police officers, but not as the

13 individuals that they are.

[↑ Summary](#)

14 Q Any teams you recognize or any -- anymore

15 specifics on that?

16 A No.

[↑ Summary](#)

17 Q What angle do you remember coming in from?

18 A From the south. I remember coming from

19 here. I was in that crowd somewhere. I just don't

20 know where.

21 Q Yeah. So after your officers took someone

22 from transport, do you recall if they returned to the

23 same position on the line?

24 A No, because as -- as I'm looking at this,

25 it's looking like officers are taking people to

74

1 transfer and coming in as groups of two now instead of

2 coming in as a group -- the original large group

3 that -- of six. Now, they're groups of these two

[↑ Summary](#)

4 took, now these two are going back to get another one.

5 So I can't say that they returned to their original

6 position.

7 Q When your officers went to transport with

8 individuals, were you with them?

[↑ Summary](#)

9 A I was with one. I don't know who my partner

10 was, but I went -- I went back to one of the transfer

11 points. I did walk back. I don't know if my whole --

12 all six of my guys were together, but I did go from

13 this point to where transfers were being made.

14 Q At least once you think?

15 A Yes.

16 Q Any luck seeing yourself?

17 A No.

18 Q No. As you can kind of see in the video,

19 you know, as people are walked out, sort of there's

20 fewer civilians, more police, or at least that's how I

21 kind of see it. Do you remember picking up arrestees

22 throughout the duration of that, or do -- do you

23 remember you and your team being more involved at the

[↑ Summary](#)

24 beginning or end, or do you have any sense of the sort

25 of timeline?

1 A I don't know at what point we were involved

2 to say it was the beginning or the end or -- or where
3 we came into it. That's why I can't remember if we
4 went once or five times, how many times we went back
5 and forth. But I can't -- I can't say where we came
6 into the -- the order of making contact with the
7 arrestees.

8 MS. HANLON: Okay. Will you pause here for
9 a second?

[↑ Summary](#)

10 Q (By Ms. Hanlon) The gentleman who's being
11 walked out right now, he's being walked out by two men
12 and there's -- they've put a baton kind of between
13 his -- his arms. Do you see who I'm talking about?

14 A This gentleman here?

[↑ Summary](#)

15 Q Yeah. Do you recognize who's walking him
16 out?

17 A No.

18 Q Do you believe it was you or your team?

19 A No.

20 Q And why not?

21 A Would you let it -- if you'll let it play.

22 I don't know if that's my team or not.

23 Q Okay. Well, I think earlier you said no.

24 You were pretty sure. Like I asked is that you or

25 your team and you said no definitively.

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[↑ Summary](#)

1 A Right. I -- I don't -- I don't think that

2 is my team.

3 Q Do -- why don't you think -- and I know

4 you're not for sure, but why do you think it's not

5 your team?

6 A I just don't. I --

7 Q Yeah.

8 A I can't be certain that it's not, but --

9 Q Yeah.

10 A -- I don't believe that's my team.

11 Q Okay. Sorry. Go ahead.

12 A I mean, I can't -- I can't even identify

13 myself so I certainly can't --

14 Q Yeah.

15 A -- identify who these people are.

16 MS. HANLON: That was Exhibit 3, minute

[↑ Summary](#)

17 6:42.

18 (The video was played.)

19 Q (By Ms. Hanlon) Do you recognize you or your

20 team having returned to the line in any way?

21 A Do I remember my team returning to the line?

22 Q Yeah, or do you see that in the video right

23 now?

24 A I'm not sure what color we are, but it

25 looked like the line -- the teams are assembling again

[↑ Summary](#)

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1 behind the line.

2 Q Yeah. Do you know why a person not on an

3 arrest team would be listed as someone's arresting

4 officer?

5 A No.

6 Q Okay. If you want to turn to exhibit --

7 well, let's do one more video. So this is just sort

8 of a specific angle. This is sort of returning to one

9 of the doc team footage.

10 MS. HANLON: If you want to just press play.

11 Q (By Ms. Hanlon) This is a shorter clip.

[↑ Summary](#)

12 (The video was played.)

13 Q (By Ms. Hanlon) Since you said you were kind

14 of nearer to this corner, it looks like some

15 individuals are being -- I don't know how to use a

16 different word, but they're -- they're being kind of

17 pulled or dragged by officers.

18 A Okay.

19 Q Do you know if your team at any point would

20 have --

21 A Pulled or drag?

22 Q -- pulled or dragged a civilian?

23 A I think most of the people that we dealt

24 with, from my recollection, they were already laid out

25 on the ground so all we had to do was pick them up and

[↑ Summary](#)

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1 take them to the transfer point.

2 Q Okay.

3 A We didn't -- I don't remember any of my guys

4 or none of my guys were instructed to go into the

5 crowd to get anyone out.

6 Q Got it.

[↑ Summary](#)

7 A So -- so we would not have had a reason to

8 pull anyone out of that crowd.

9 Q Do you -- from what you remember, this sort

10 of group of officers that's still working with this

11 crowd, do you believe that your officers would have

12 been in this -- in this group of officers that's kind

13 of on the sidewalk?

14 A No, I don't believe my guys would be in

15 there because we didn't go on the sidewalk.

16 Q Okay. And this is just a different angle of

17 the gentleman we spoke about before. From this angle,

18 do you think those are your officers walking that

19 individual?

20 A No.

21 Q Okay. Okay. All right. One last memory

[↑ Summary](#)

22 exercise, as you will. If you want to turn to --

23 let's start with exhibit -- we want to start with

24 Exhibit 56; so that would be on page 44.

25 Do you recognize anybody in this photo?

1 A No.

2 Q Do you recognize the -- the words written on

3 the helmets?

4 A I can't make out what's written on the

5 helmets.

6 Q Okay. Do you -- in this photo, do you see

7 circled some -- some spray?

8 A I see a -- a fog of some sort --

[↑ Summary](#)

9 Q Yeah.

10 A -- that has been circled by a red.

11 Q Do you remember seeing that -- that spray

12 the night of?

13 A No.

14 Q Okay.

15 A I do not.

16 Q All right. Fifty-seven is another circling

[↑ Summary](#)

17 of some -- some spray fog. Do you remember seeing

18 this the night of?

19 A No.

20 Q Okay. Do you recognize anyone in this

21 photo?

22 A No, I can't make out any features of anyone

23 in this photo.

24 Q The next one -- I mean, do you recognize

25 this individual in 58, Plaintiff's Exhibit 58?

80

1 A The -- the individual meaning in --

2 Q The circled --

3 A -- the white shirt there?

4 Q Mm-hmm.

5 A No, I don't who that might be.

6 Q Okay. All right. The next one is Exhibit

7 59. This is a shot taken from in -- from a -- from a

8 civilian. So it's part of a video that was shot by a

9 civilian sort of as events proceeded.

10 A Okay.

11 Q From this angle -- and it's actually a

12 little easier to see on the -- on the screen. Do you

13 recognize any of the officers?

14 A No. No, I can't make out features enough to

15 identify who might be under those shields.

[↑ Summary](#)

16 Q Under the shields. Okay. Exhibit 60, which

17 is the next -- any sense of who is in this? Anyone

[↑ Summary](#)

18 you recognize?

19 A No.

20 Q Okay. Exhibit 61 is another shot from a

21 civilian; so it's -- it's facing out. Again, a

22 little -- maybe a little easier to see on the screen,

23 although it's not clear. Any -- do you recognize

24 anyone in this?

25 A No.

[↑ Summary](#)

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1 Q Okay. The individual -- there's a number of

2 individuals sort of center -- of the officers, there

3 are a number of officers sort of in the center top-ish

4 part that are not in the full CDT gear.

5 A Okay.

6 Q So they're wearing like blue shirts. Do you

7 have any knowledge as to what officers would have been

8 present that were not in CDT gear?

9 A No. No.

10 Q Okay. The next photo, do you recognize

11 anyone? Sixty-two.

[↑ Summary](#)

12 A No.

13 Q Okay. I guess the next exhibit, 64 -- or

14 wait a minute. I skipped 63. Skipped 63. Anyone in

15 63?

16 A No.

17 Q All right. Sixty-four. Do you recognize

18 the officer in the white square?

19 A No.

20 Q Okay. Out of just curiosity, are you

21 familiar with Sergeant Brian Rossomanno?

22 A Yes.

23 Q Okay. Would you be able to recognize him if

24 you saw him?

25 A Yes.

[↑ Summary](#)

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1 Q Okay. Exhibit 65.

2 A No.

3 Q Okay. Exhibit 66.

4 A No.

5 Q Exhibit 67.

6 A No.

7 Q Okay. And then Exhibit 68 there's a number

8 of officers that are sort of surrounding a man on his

9 knees. Do you recognize any of those officers?

10 A No.

11 Q Do you have any reason to believe those

12 might be your officers?

13 A No, I don't have reason to believe that they

14 would be mine, but --

15 Q Okay. He's in the street. That's why I was

16 sort of asking, or it appears to me that he's in the

17 street, but do you have any memory of like that

18 specific gentleman?

19 A No.

20 Q No. Okay. All right. Sixty-nine.

21 A No.

22 Q All right. Okay.

23 MS. HANLON: Okay. Yeah. Okay.

24 Q (By Ms. Hanlon) Just some final wrap-up

25 questions. Do you -- and this is just speaking for

[↑ Summary](#)

[↑ Summary](#)

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1 you in case I did not ask any of these earlier. Just

2 for the record, do you recall personally deploying any

3 pepper spray against any civilians?

4 A I did not.

5 Q Do you personally recall striking any

6 civilians?

7 A I do not.

8 Q Do you recall zip tieing any civilians?

9 A I might have. I'm not certain, but I might

10 have.

11 Q Do you recall any identifying details such

12 as height, weight, race, dress, age of any of the

13 civilians you personally like came into physical

14 contact with?

15 A I remember interacting with a white male. I

16 can't remember what he was wearing. Just because

17 there was so many people there, I can't even recall

18 what hair color. I just know -- I do recall

19 interacting with a white guy.

[↑ Summary](#)

[↑ Summary](#)

20 Q Yeah. And do you remember putting a hold on

21 or dragging any civilians?

22 A I did not.

23 Q Okay. Do you remember at any point putting

24 your boot on top of a civilian.

25 A Absolutely not.

84

1 Q Okay. Your knees on top of a civilian?

2 A No.

3 Q Okay. Is there anything I haven't asked

4 that you think, man, you should really ask this if

5 you're trying to figure out which officers interacted

6 with which civilians?

[↑ Summary](#)

7 A No. I think that would call for me to

8 speculate where you go with this; so I don't know.

9 Q Okay. Anyone else you would recommend we --

10 who would you recommend we speak to who might have

11 more information?

12 A I think you've got us all listed. I think

13 you got us all. I don't know who -- who's next, but I

14 really can't say.

15 Q Okay.

16 A I'm sure you'll get somebody. You got us

17 all listed; so . . .

18 Q Okay. Yeah. So after the events of that

19 night, did you have any conversations with any other

20 officers about their actions during the mass arrest?

21 A No.

[↑ Summary](#)

22 Q Did you have any conversations about the

23 mass arrest?

24 A No, I don't think I cared enough to talk

25 about it.

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1 MS. HANLON: Okay. All right. All right.

2 That's all. Thank you, Sergeant.

[↑ Summary](#)

3 THE WITNESS: Sure.

4 MS. RAIMONDO: So you have the option to

5 review the transcript of what was taken down today or

6 you can waive signature and -- and I suggest you just

7 waive.

8 THE WITNESS: Okay.

9 VIDEOGRAPHER: The time is 12:04. We are

10 off the record. This concludes our deposition of

11 Scott Valentine.

12 (Whereupon, the videotaped deposition of

13 OFFICER SCOTT VALENTINE was concluded.)

14 (Whereupon, the signature of the witness was

15 waived in my presence.)

16

[↑ Summary](#)

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1 REPORTER CERTIFICATE

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2 I, REBECCA L. TUGGLE, a Registered
3 Professional Reporter, Certified Court Reporter, and
4 Certified Shorthand Reporter within and for the State
5 of Missouri, do hereby certify that there came before
6 me on January 9, 2020, at the City Counselor's Office,
7 City Hall, Room 314, 1200 Market Street, St. Louis,
8 Missouri 63103

9 OFFICER SCOTT VALENTINE

10 who was by me first duly sworn; that the witness
11 was carefully examined; that said examination was
12 reported by myself, translated and proofread using
13 computer-aided transcription; and the above transcript
14 of proceedings is a true and accurate transcript of my
15 notes as taken at the time of the examination of this
16 witness.

[↑ Summary](#)

17 I further certify that I am neither attorney
18 nor counsel for nor related nor employed by any of the
19 parties to the action in which this examination is
20 taken; further, that I am not a relative or employee of
21 any attorney or counsel employed by the parties hereto
22 or financially interested in this action.

23 Dated this 20th day of January, 2020.

24 _____
Rebecca L. Tuggle, RPR, CCR, CSR

[↑ Summary](#)

25

[↑ Summary](#)